

24NNCV03237 24NNCV03237

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Case Number: 24NNCV03237 Hearing Date: July 10, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion for Leave to File Third Amended Complaint

Hearing Date: 07/10/26

CASE NO./NAME: 24NNCV03237/Joseph A. Carnahan v. Michelle Crosby, et. al.

Moving Party: Plaintiff Joseph A. Carnahan

Responding Party: Defendant Michelle Crosby

Notice: Sufficient

Ruling: DENIED

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at or by telephone at (818) 260-8422.

BACKGROUND

On or about December 12, 2023, Plaintiff Joseph A. Carnahan ("Carnahan") leased a Porsche automobile from Porsche Downtown LA through Porsche Financial Services ("Porsche"). (SAC, ¶ 6.) Carnahan developed a romantic relationship with

Defendant Michelle Crosby (“Crosby”) and loaned her the Porsche. (Id. at ¶ 8.) On or about March 6, 2024, Carnahan revoked the loan and requested return of the Porsche. (Id. at ¶ 9.) Crosby did not return the Porsche and turned off the factory-installed tracking system. (Id. at ¶ 10.) On September 21, 2024, Carnahan was notified that the Porsche was impounded by the Beverly Hills Police Department. ((Id. at ¶ 12.) Carnahan was able to recover possession of the Porsche and discovered extensive damage. (Id. at ¶ 12, 13.)

On July 31, 2024, Carnahan filed a Complaint. On July 30, 2025, Carnahan filed the operative Second Amended Complaint (“SAC”) alleging (1) conversion and (2) harassment.

On September 5, 2025, Crosby filed a Cross-Complaint.

On March 17, 2026, Carnahan filed this Motion for Leave to File Third Amended Complaint (“Motion”).

On June 26, 2026, Crosby filed an opposition to this Motion.

On July 6, 2026, Carnahan filed a late reply.

LEGAL STANDARD

The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Civ. Proc. Code § 473, subd. (a)(1).)

It is the general rule that amendments to pleadings should be liberally allowed. (Simons v. Kern Cnty. (1965) 234 Cal.App.2d 362, 367.) If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend, and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. (Morgan v. Superior Ct. of Cal. In & For Los Angeles County (1959) 172 Cal.App.2d 527, 530.) It is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment. (Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 761.) “Although courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial, this policy should be applied only where no prejudice is shown to the adverse party. (Ibid.) If the proposed amendment fails to state a cause of action, it is proper to deny leave to amend. (Foxborough v. Van Atta (1994) 26 Cal.App.4th 217, 220.)

According to California Rules of Court, Rule 3.1324, a motion to amend a pleading before trial must: (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324.) A separate declaration must accompany the motion and must specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when facts giving rise to the amended allegations were discovered; and (4) reasons why the request for amendment was not made earlier. (Ibid.)

DISCUSSION

According to California Rules of Court, Rule 3.1324, a motion to amend a pleading before trial must: (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324.) A separate declaration must accompany the motion and must specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when facts giving rise to the amended allegations were discovered; and (4) reasons why the request for amendment was not made earlier. (Ibid.)

Here, Carnahan clearly states the allegations that are proposed to be added, changed, or removed and the locations of those changes. Carnahan seeks to amend the SAC by (1) re-captioning it the Third Amended Complaint; (2) adding Defamation and Intentional Interference with Contractual Relation causes of action to the caption; (3) identifying Plaintiff as "Plaintiff and Cross-Defendant" and Defendant as "Defendant and Cross-Complainant"; (4) insert additional causes of action for Defamation and Intentional Interference with Contractual Relations to include paragraph 32 through 43; and (5) revise the prayer for relief to reflect and correspond the changes in the causes of action. Carnahan also included a copy of the proposed Third Amended Complaint ("TAC") as an exhibit with the Motion. (See Ex. 1.)

However, the declaration attached with the Motion does not describe (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when facts giving rise to the amended allegations were discovered; and (4) reasons why the request for amendment was not made earlier. (See Slavkin Decl.) The declaration merely states the amendments Carnahan seeks to add to the proposed pleadings. (Ibid.) Thus, the declaration did not comply with Rule 3.1324.

Accordingly, Carnahan's Motion did not meet all the requirements of Rule 3.1324. As Carnahan did not comply with Rule 3.1324, the Court denies Carnahan's Motion. (See *Hataishi v. First Am. Home Buyers Prot. Corp.* (2014) 223 Cal.App.4th 1454, 1469 [finding no abuse of discretion in the trial court requiring Plaintiff to bring a motion, compliant with the Rules of Court].)

In opposition, Crosby argues both proposed additions fail to state a cause of action. As to defamation, Carnahan does not identify the alleged statement's substance or specific words. Moreover, the statements mirror Cross-Complaint alleges protected by the litigation privilege. As to intentional interference with contractual relations, Crosby contends that the proposed pleading does not identify a contract or a disruption of that contract. Finally, Crosby argues that the proposed pleading does not coherently state the relief it seeks on the claims it seeks to add.

In reply, Carnahan argues the proposed additions do not fail to state causes of action. As to defamation, Carnahan argues he identifies the substance of the statements alleged, if not the exact words. Carnahan also argues that the litigation privilege does not apply. As to intentional interference with contractual relations, Carnahan argues that Crosby's argument that this cause of action is deficient is entirely based on Crosby's conclusion that the Defamation cause of action is deficient.

Here, the Court does not need to address these arguments as Carnahan failed to comply with Rule 3.1324. Even so, arguments as to the sufficiency of pleadings should be argued through the filing of a demurrer, rather than on a motion for leave to amend.

Accordingly, Carnahan's Motion is denied.

CONCLUSION AND ORDER

Carnahan's Motion for Leave to File Third Amended Complaint is denied.

MOVING PARTY shall provide notice of this order.

Motion for Protective Order Regarding Second Revised

Special Interrogatories, Set One and Request for Monetary Sanctions

Hearing Date: 07/10/26

CASE NO./NAME: 24NNCV03237/Joseph

A. Carnahan v. Michelle Crosby, et. al.

Moving Party: Defendant

Michelle Crosby

Responding Party: Plaintiff Joseph A. Carnahan

Notice: Sufficient

Ruling:

GRANT

BACKGROUND

On or about December 12, 2023, Plaintiff

Joseph A. Carnahan ("Carnahan") leased a Porsche automobile from Porsche

Downtown LA through Porsche Financial Services ("Porsche"). (SAC, ¶ 6.)

Carnahan developed a romantic relationship with Defendant Michelle Crosby

("Crosby") and loaned her the Porsche. (Id. at ¶ 8.) On or about March

6, 2024, Carnahan revoked the loan and requested return of the Porsche. (Id.

at ¶ 9.) Crosby did not return the Porsche and turned off the factory-installed

tracking system. (Id. at ¶ 10.) On September 21, 2024, Carnahan was

notified that the Porsche was impounded by the Beverly Hills Police Department.

((Id. at ¶ 12.) Carnahan was able to recover possession of the Porsche

and discovered extensive damage. (Id. at ¶ 12, 13.)

On July 31, 2024, Carnahan filed a

Complaint. On July 30, 2025, Carnahan filed a Second Amended Complaint (“SACC”)

alleging (1) conversion and (2) harassment.

On September 5, 2025, Crosby filed a

Cross-Complaint.

On May 12, 2026, Crosby filed this Motion

for Protective Order Regarding Second Revised Special Interrogatories, Set One

and Request for Monetary Sanctions in the Amount of \$9,750 Against Joseph

Carnahan and his Counsel Wendy Slavkin (“Motion”).

On June 18, 2026, Crosby filed a Reply.

On June 26, 2026, Carnahan filed an

opposition.

LEGAL

STANDARD

A party may propound 35 specially prepared

interrogatories that are relevant to the subject matter of the pending action. (Civ.

Proc. Code, § 2030.030, subd. (a)(1).) Subject to the right of the responding

party to seek a protective order under Section 2030.090, any party who attaches a supporting declaration as described in Section 2030.050 may propound a greater number of specially prepared interrogatories to another party if this greater number is warranted because of any of the following:

(1) The complexity or the quantity of the existing and potential issues

in the particular case.

(2) The financial burden on a party entailed in conducting the discovery

by oral deposition.

(3) The expedience of using this method of discovery to provide to the

responding party the opportunity to conduct an inquiry, investigation, or

search of files or records to supply the information sought.

If the responding party seeks a protective order on the ground that the

number of specially prepared interrogatories is unwarranted, the propounding

party shall have the burden of justifying the number of these interrogatories.

(Civ. Proc. Code, § 2030.040, subd. (a)-(b).) When

interrogatories have been propounded, the responding party, and any other party

or affected natural person or organization may promptly move for a protective

order. This motion shall be accompanied by a meet and confer declaration under

Section 2016.040. (Civ. Proc. Code, § 2030.090, subd. (a).)

The court, for good cause shown, may make any order that justice requires

to protect any party or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions: (1) That the set of interrogatories, or particular interrogatories in the set, need not be answered. (2) That, contrary to the representations made in a declaration submitted under Section 2030.050, the number of specially prepared interrogatories is unwarranted. (Id. at § 2030.090, subd. (b)(1)-(2).) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2030.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order under this section, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Id. at § 2030.090, subd. (d).)

MEET

AND CONFER

Carnahan argues that Crosby's meet and confer efforts were insufficient because they did not discuss that the discovery was cumulative, duplicative, or obtainable from another source or address that the alleged number of special interrogatories is oppressive. In reply, Crosby argues Carnahan's own exhibits refute this argument.

The Court is unpersuaded by Carnahan's argument. The Court finds Crosby's efforts to meet and confer sufficient. (Jones Decl., ¶ 6-12, Exh. 2-9.)

The parties discussed the declaration at dispute in this motion throughout the meet and confer efforts. (Ibid.)

TIMELINESS

Carnahan argues that Crosby's Motion

was not promptly brought. In reply, Crosby argues that section 2030.090(a) sets

no fixed deadline and that the Motion was filed on May 12, 2026, prior to the

expiration of the deadline to respond to the special interrogatories. Also,

Crosby contends that the parties did not reach an impasse until April 30, 2026,

when Crosby's compromise was rejected.

The Court agrees with Crosby and

finds that there is no fixed deadline set by section 2030.090(a). Furthermore, the

Court finds that Crosby "promptly" filed the Motion on May 12, 2026, closely

after the party's impasse and when the discovery responses were due.

DISCUSSION

Here,

Crosby requests that (1) Crosby need not respond to Special Interrogatories,

Set One, Nos. 36 through 429; (2) in the alternative, Crosby's obligation is

limited to 70 specially prepared interrogatories, to be selected by Carnahan

from the existing set within a reasonable time set by the Court; and (3) the

court award monetary sanctions against Carnahan and his counsel.

A.

Protective

Order

Crosby's Argument

Crosby argues

that Carnahan's declaration is conclusory and does not meet its burden of

justifying the number of interrogatories because it fails to bridge the gap

between describing the case and justifying 429 interrogatories as opposed to

some substantially smaller number. Crosby also argues that the interrogatories

themselves confirm that the set is not narrowly tailored. Additionally, Crosby

contends that the declaration inflates the complexity of the case and that many

of the causes of action rely on similar facts. That the declaration states the

interrogatories address "only 136 of the more than 416 separate allegations of

material fact" demonstrates they are not calibrated to the needs of the case

and suggests this is merely the opening installment of a larger written

discovery campaign.

Furthermore,

Crosby argues that oral deposition is the superior and more appropriate vehicle

for discovery than the 429 special interrogatories, as many of the Cross-Complaint allegations are grounded in Crosby's first-hand knowledge of her communications with Carnahan. Finally, Crosby argues that 429 special interrogatories are incommensurate with the result sought. The amount is 12 times the statutory limit and does not match the low amount of discovery requested by the requests for admission and production. Carnahan has been offered three times to revise his declaration and has rejected a compromise for 70 special interrogatories.

Carnahan's Opposition

In opposition, Carnahan argues Crosby's arguments are conclusory, and the declaration states specific reasons for supporting the number of special interrogatories. Carnahan argues that the special interrogatories were carefully tailored to the case. Crosby only identifies two instances out of 429 requests where Crosby believes they are not narrowly tailored.

Additionally,

Carnahan argues the number of special interrogatories is fully justified by the complexity and separate, distinct facts alleged around each cause of action.

Carnahan contends that the causes of action rely on multiple, separate incidents. Carnahan further argues that he determined the best challenge to 136

of Crosby's 416 factual allegations, leaving the majority to be challenged through oral deposition.

Crosby's

Reply

In reply, Crosby argues that

Carnahan's declaration does not meet his burden of proof. Crosby argues the opposition is conclusory and attempts to supply new justifications for the amount of special interrogatories that were not included in the declaration.

Moreover, Carnahan admits to defects with interrogatories No. 282-283, confirms that the causes of action share similar facts, and concedes that deposition is suitable for the majority of the allegations. Finally, the case law the opposition cites to claim that a lengthy pleading justifies a large number of interrogatories is unpublished and uncitable.

Analysis

It

is the propounding party's burden to justify the number of special interrogatories. (Civ. Proc. Code §

2030.040.) The greater number is warranted due to (1) complexity or quantity of the issues; (2) financial burden in conducting oral deposition; or (3) the expedience in using this method of discovery. (Ibid.) The declaration

must describe the “reasons why any factor relied on is applicable to the lawsuit.” (Civ. Proc. Code § 2030.050.)

Here, the Court finds that Carnahan

has not met his burden of justifying 429 special interrogatories. Carnahan

lists all three factors in attempting to justify the amount of special

interrogatories. (Ex. 7, Slavkin Decl., ¶ 8.) Carnahan merely states that the case

is complex because the Cross-Complaint is 49 pages with 127 paragraphs of

factual background and then lists the 13 causes of action from the

Cross-Complaint. (Id. at ¶ 9, 10.) Carnahan states there is little

overlap between the causes of action with no reasoning or explanation. (Id.

at ¶ 11.) That the interrogatories allegedly only challenge 136 of the 416

allegations does not explain why the 429 special interrogatories were

justified.

Furthermore, Carnahan’s declaration

relies on the financial burden of conducting oral deposition. (Id. at ¶

13.) However, Carnahan reasons this is for efficiency and to allow inquiry into

the information sought. (Ibid.) Carnahan does not sufficiently explain

reasons why the financial burden of oral deposition is applicable to this

specific lawsuit. While the Court agrees that written discovery is a useful

tool in preparation of deposition, Carnahan’s reasoning does not justify the

429 special interrogatories propounded rather than the statutory amount of 35.

Nor does Carnahan's conclusive statements that the special interrogatories are not cumulative or burdensome and are narrowly tailored strengthen this argument.

Moreover, "[w]hen discovery

requests are grossly overbroad on their face, and hence do not appear

reasonably related to a legitimate discovery need, a reasonable inference can

be drawn of an intent to harass and improperly burden." (*Obregon v.*

Superior Court (1998) 67 Cal.App.4th 424, 431.) It is a judge's

responsibility to control such abuse. (*Ibid.*) In proposing the 35

special interrogatories limit, the Discovery Commission addressed "a concern

that is well expressed in the following passage from *Deyo v. Kilbourne*

[, *supra*,] 84 Cal.App.3d 771, 780–781[, 149 Cal.Rptr. 499]: 'Lengthy

interrogatories suitable to major litigation are often needlessly used in small

cases. Questions are often repetitious or wholly irrelevant. While our

discovery laws are designed to prevent trial by ambush, the most common cry

from lawyers is that they are being "papered to death." (*Clement v. Alegre*

(2009) 177 Cal.App.4th 1277, 1288.)

The Court agrees with Crosby that

429 special interrogatories, 12 times the statutory limit, is too voluminous

and exemplifies the type of situation the Discovery Commission sought to remedy when implementing the 35 special interrogatory limit. Crosby has not met his burden to justify this high number of special interrogatories or show that number reasonably relates to the discovery needs of this case.

Accordingly, the Motion for

Protective Order is granted, and Crosby need not

respond to Special Interrogatories, Set One, Nos. 36 through 429.

B. Monetary Sanctions

Crosby argues

that Carnahan has not acted with substantial justification. Crosby argues that

Carnahan was given three chances to correct the deficiency and did not. Consequently,

Crosby was forced to bring this Motion. Crosby has acted in good faith and

cooperated with all other discovery in this action. Crosby requests \$9,750 in

attorney's fees.

Carnahan

contends that the Court should impose sanctions against Crosby for unjustified

delay, bad faith meeting and conferring, and failing to substantiate a valid

challenge to Crosby's obligation to respond to written discovery. Carnahan

requests \$5,100 in sanctions.

In reply, Crosby

argues that Crosby acted in good faith by responding to Carnahan's other discovery requests and offering reasonable compromises.

The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order under this section, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Civ. Proc. Code, § 2030.090, subd. (d).)

Here, the Court

will impose a monetary sanction on Carnahan for unsuccessfully opposing the

Motion without substantial justification. However, the Court finds that 9 hours

spent in drafting the Motion, reviewing the opposition, and drafting a reply is

unreasonable. (Jones Decl., ¶ 17.) The Court will reduce these hours to 4 hours. Additionally,

the Court will reduce the 3 hours of reviewing the Special Interrogatories and

Meeting and Conferring to 2 hours. Crosby's counsel also billed 1 hour for

participating in the hearing. Thus, at a rate of \$750.00 per hour for 7 hours, sanctions

will total \$5,250.00.

Accordingly, sanctions against Carnahan

are granted in an amount of \$5,250.00.

CONCLUSION

AND ORDER

Crosby's Motion for

Protective Order Regarding Second Revised Special Interrogatories, Set One is

granted.

Crosby's Request for Monetary Sanctions

against Joseph Carnahan and his counsel Wendy Slavkin is granted in the reduced

amount of \$5,250.00.

MOVING PARTY

shall

provide notice of this order.

Hon. Victor Avila

Judge of the Superior Court